

IN THE HIGH COURT OF SOUTH AFRICA
[GAUTENG DIVISION, PRETORIA / INSERT APPROPRIATE DIVISION]

CASE NUMBER: _____

REPORTABLE: YES / NO

OF INTEREST TO OTHER JUDGES: YES / NO

REVISED: YES / NO

DATE: _____

In the matter between:

APPLICANT

and

FIRST RESPONDENT

SECOND RESPONDENT

THIRD RESPONDENT

COURT ORDER

[CORAM: _____]

[Acting Judge / Judge of the High Court]

Having heard the application and having considered the papers filed of record:

IT IS HEREBY ORDERED THAT:

1. RESCISSION OF DEBT REVIEW ORDER

1.1 The debt restructuring order granted by this Honourable Court under case number _____ on the _____ day of _____ 20__ is hereby rescinded and set aside in its entirety.

OR [ALTERNATIVE - VARIATION]

1.1 The debt restructuring order granted by this Honourable Court under case number _____ on the _____ day of _____ 20__ is hereby varied to the effect that the Applicant is no longer subject to debt review and is released from all restrictions and limitations imposed by the said order.

2. REMOVAL FROM DEBT REVIEW STATUS

2.1 The Applicant, _____ [full names], ID Number _____, is hereby declared to be no longer subject to debt review in terms of the National Credit Act 34 of 2005.

2.2 The Applicant's status as a consumer under debt review is hereby terminated with immediate effect.

3. CREDIT BUREAU DIRECTIVES

3.1 All registered credit bureaus, including but not limited to:

- TransUnion (ITC)
- Experian South Africa
- XDS (Xpert Decision Systems)
- Compuscan
- Southern African Fraud Prevention Service (SAFPS)

are hereby directed and ordered to:

3.1.1 Remove the debt review flag, notation, and/or any indication that the Applicant is or was under debt review from the Applicant's credit profile and credit record;

3.1.2 Update the Applicant's credit record to reflect that the Applicant is no longer under debt review;

3.1.3 Effect the removal and updates contemplated in paragraphs 3.1.1 and 3.1.2 above within 7 (seven) calendar days of this order being served upon them;

3.1.4 Provide written confirmation of compliance with this order to the Applicant and/or the Applicant's attorneys within 10 (ten) calendar days of effecting the removal.

4. CREDIT PROVIDER DIRECTIVES

4.1 The First Respondent, _____, is hereby directed and ordered to:

4.1.1 Remove any and all debt review flags, notations, codes, or indications from the Applicant's credit account(s);

4.1.2 Report the correct and updated status of the Applicant's account(s) to all credit bureaus with which it is registered;

4.1.3 Update its internal systems and records to reflect that the Applicant is no longer under debt review;

4.1.4 Effect compliance with paragraphs 4.1.1 to 4.1.3 above within 7 (seven) calendar days of service of this order;

4.1.5 Provide written confirmation of compliance to the Applicant and/or the Applicant's attorneys within 10 (ten) calendar days.

4.2 The Second Respondent, _____, is hereby directed and ordered to comply with the provisions of paragraph 4.1 above, mutatis mutandis.

4.3 The Third Respondent, _____, is hereby directed and ordered to comply with the provisions of paragraph 4.1 above, mutatis mutandis.

4.4 [ADD ADDITIONAL RESPONDENTS AS NECESSARY]

5. NATIONAL CREDIT REGULATOR DIRECTIVES

5.1 The National Credit Regulator is hereby directed and ordered to:

5.1.1 Update its records and systems to reflect that the Applicant is no longer under debt review;

5.1.2 Remove the Applicant's details from any register or database of consumers under debt review;

5.1.3 Issue a clearance certificate or written confirmation that the Applicant is no longer subject to debt review;

5.1.4 Notify all registered credit bureaus of the termination of the Applicant's debt review status;

5.1.5 Effect compliance with this order within 14 (fourteen) calendar days of service thereof;

5.1.6 Provide written confirmation of compliance to the Applicant and/or the Applicant's attorneys.

6. DEBT COUNSELLOR DIRECTIVES (IF APPLICABLE)

6.1 [IF APPLICABLE:] _____ [Debt Counsellor Name],
NCRDC registration number _____, is hereby directed and
ordered to:

6.1.1 Issue a clearance certificate in terms of Section 86(10) of the National Credit Act 34 of 2005 confirming that the Applicant has satisfied all obligations under the debt rearrangement;

6.1.2 File the prescribed Form 17.W with the National Credit Regulator within 5 (five) business days;

6.1.3 Notify all credit providers who were parties to the debt review of the termination thereof;

6.1.4 Update the debt review file to reflect the termination of the debt review;

6.1.5 Provide written confirmation of compliance to the Applicant within 7 (seven) calendar days.

7. PAYMENT DISTRIBUTION AGENCY (PDA) DIRECTIVES (IF APPLICABLE)

7.1 [IF APPLICABLE:] The Payment Distribution Agency is hereby directed to:

7.1.1 Close the Applicant's debt review payment account;

7.1.2 Provide a final statement of account showing all payments made and distributions to creditors;

7.1.3 Refund any surplus funds to the Applicant within 14 (fourteen) days;

7.1.4 Issue a clearance or completion certificate to the Applicant.

8. PROHIBITION ON FUTURE REPORTING

8.1 All credit providers, credit bureaus, and any other entities are hereby interdicted and restrained from:

8.1.1 Reporting or re-reporting the Applicant as being under debt review;

8.1.2 Placing any debt review flag or notation on the Applicant's credit profile;

8.1.3 Making any reference to the Applicant being under debt review in any credit report, credit application, or credit assessment;

8.1.4 Taking any action that would have the effect of perpetuating or re-establishing the Applicant's debt review status.

8.2 This prohibition shall apply with immediate effect and shall remain in force indefinitely unless a new debt review order is lawfully obtained in the future.

9. ENFORCEMENT AND CONTEMPT

9.1 Any party who fails to comply with this order within the time periods specified shall be guilty of contempt of court.

9.2 The Applicant is granted leave to approach this Court on the same papers, duly supplemented, for an order holding any non-compliant party in contempt of court and for such further relief as may be appropriate.

10. COSTS

[SELECT APPLICABLE OPTION:]

Option A - Costs in favour of Applicant:

10.1 The Respondents, jointly and severally, the one paying the other to be absolved, shall pay the costs of this application.

Option B - No order as to costs:

10.1 There is no order as to costs.

Option C - Each party to pay own costs:

10.1 Each party shall bear their own costs.

Option D - Costs reserved:

10.1 The question of costs is reserved for determination at a later stage.

11. LIBERTY TO APPLY

11.1 Any party is granted leave to apply to this Court on the same papers, duly supplemented, for variation, clarification, or further relief in connection with the implementation of this order.

12. OPERATION OF ORDER

12.1 This order shall come into operation immediately and shall be executable forthwith, notwithstanding the provisions of Rule 45A or any other Rule of Court.

12.2 Leave to execute is hereby granted in terms of Rule 45A(3).

13. SERVICE OF ORDER

13.1 The Applicant's attorneys are directed to serve a copy of this order upon:

13.1.1 All credit bureaus mentioned in paragraph 3.1 above within 3 (three) business days;

13.1.2 All Respondents within 5 (five) business days;

13.1.3 The National Credit Regulator within 5 (five) business days;

13.1.4 The debt counsellor (if applicable) within 5 (five) business days;

13.1.5 The Payment Distribution Agency (if applicable) within 5 (five) business days.

13.2 Service may be effected by email, fax, or hand delivery, and proof of service shall be filed with the Registrar of this Court.

14. REPORTING AND COMPLIANCE

14.1 Each party directed to take action in terms of this order shall file an affidavit with the Registrar of this Court confirming compliance within 14 (fourteen) days of effecting compliance.

14.2 A copy of such affidavit shall be served on the Applicant's attorneys.

BY ORDER OF THE COURT

REGISTRAR OF THE HIGH COURT

DATE: _____

ATTORNEYS FOR APPLICANT: _____

[Name of Law Firm]

[Address]

[Tel:]

[Email:]

[Ref:]

[IF APPLICABLE]

ATTORNEYS FOR RESPONDENT(S): _____

[Name of Law Firm]

[Address]

[Tel:]

[Email:]

[Ref:]

=====

=====

NOTES TO PARTIES:

1. This is a court order and must be complied with strictly and within the time periods specified.
2. Failure to comply with this order may result in contempt of court proceedings, which can lead to fines or imprisonment.
3. Credit bureaus and credit providers are required by law to comply with court orders relating to credit information.
4. The Applicant should retain a copy of this order and provide it to any entity that requests proof of debt review removal.
5. If any party experiences difficulty in complying with this order, they should immediately seek legal advice and, if necessary, approach the Court for variation or extension of time.
6. The Applicant is advised to obtain a current credit report 30 days after this order to verify that all debt review notations have been removed.

=====

=====